

LIMITED-SOURCES JUSTIFICATION

Authority FAR 8.405-6(a)(1)(i)(B)

1. Identification of the agency and contracting activity:

Agency: U.S. Environmental Protection Agency (EPA)

Contracting Activity: Office of Mission Support (OMS)
Office of Acquisition Solutions (OAS)
Cincinnati Acquisition Division (CAD)

Project Identification: Office of Mission Support (OMS), Office of Resources and Business Operations (ORBO)

Contract/Order: GS-10F-0372 / 68HERC22F0512

2. Nature and description of action being approved:

The purpose of this limited source justification is to extend the period of performance and increase the ceiling of the Office of Resources and Business Operations (ORBO) Agency-wide ordering mechanism under contract GS-10F-0372 task order (TO) number 68HERC22F0512, with Access Interpreting Inc. (Access) for a six-month period with an estimated value of [REDACTED]. This action is necessary to ensure these statutorily mandated interpreter services remain available to EPA employees who are deaf or hard of hearing, so they are equipped to perform their essential job functions, actively participate in training, meetings, and seminars, and fully engage as an EPA employee.

This limited source justification requests an extension of the task order used to provide Agency-wide interpreter services from the existing vendor through a maximum end date of September 30, 2025. The need for an extension under the existing task order has been prompted by internal Agency reviews that were required to reassess the follow-on requirement to ensure the scope of services and language comply with federal executive orders. The current task order is scheduled to expire on March 31, 2025, and the contemplated extension beyond the current expiration date will consist of a six-month period. The task order period of performance extension and capacity increase is necessary to maintain availability of Agency-wide interpreter services (remote and onsite) in compliance with federally mandated statutory responsibilities under Sections 501 and 508 of the Rehabilitation Act of 1973 and to ensure continuity of these services for employees who are hearing impaired while the competitive acquisition process is completed for the follow-on task order. The Government does not anticipate any change to the existing scope during the extension period.

3. A description of the supplies or services required to meet the agency's needs (including the estimated value):

The continued interpreter services to be provided under the limited source justification are as follows:

- Basic and scientific interpreter services, including American Sign Language (ASL)
- Cued Language Transliterator (CLT)
- Communication Access Real-time Translation (CART) captioning for deaf and hard of hearing (D/HH) employees at EPA agency-wide events, whether remote or on-site

These services cover various technical subjects, including environmental science, legal matters, enforcement material, information technology, and general professional workplace discussions. This ensures EPA's commitment to maintaining continuity of services for D/HH employees, enabling them to fulfill their professional responsibilities and obligations in a hybrid workforce environment. *Refer to the attached Performance Work Statement for the complete scope of services.*

Estimated Value of Extension Period:

The total maximum estimated value for the increase in ceiling capacity is [REDACTED] to maintain continuity of interpreter services for the duration of the 6-month extension period to September 30, 2025.

4. The authority and supporting rationale, and, if applicable, a demonstration of the proposed contractor's unique qualifications to provide the required supply or service:

In accordance with FAR 8.405-6(a)(1)(i)(B), only one source is capable of providing these unique and highly specialized services at the level of quality required to support the immediate needs of the deaf and hard of hearing employees across the Agency at this time. The current contractor, Access, has performed at a satisfactory level under the existing task order and is familiar with the service requirements. Furthermore, the current vendor is already equipped, integrated into the Agency's IT infrastructure, and postured to comply with all applicable Agency policies and the federal statutes that mandate these services to be made available to the deaf and hard of hearing employees. The interpreting services currently provided by Access are critical to support the functional capabilities of EPA staff who use these services to perform their essential job functions seamlessly across different Agency platforms both virtually and in-person. Extending the task order with the current contractor will ensure no interruption in services while the follow-on task order is being repurchased. Disrupting these critical services will result in the Agency's non-compliance with the statutory mandates prescribed in Sections 501 and 508 of the Rehabilitation Act of 1973 (29 U.S.C § 794 (d)) which requires EPA to afford disabled employees and member of the public the right to access Federal electronic and information technologies.

Continuation of services with the current vendor is in the best interest of the Government to maintain seamless operations and fulfill legal obligations. Competing a six-month contract prior to the expiration of the current task order is not feasible, would prove administratively inefficient, and ultimately increase the risk of statutory non-compliance due to the time it would take another contractor to ramp-up to fulfill the Agency's needs. Another vendor would need to become familiar with the scope of services, stand up a compatible IT and scheduling system, and train employees on the use of the new system.

5. Determination by the ordering activity contracting officer that the order represents the best value consistent with 8.404(d):

Given the critical need for continuity of Agency-wide interpreter services, the satisfactory performance by the current contractor, and the time required to complete a competitive acquisition process, it is in the best interest of the government to extend the existing task order contract with Access. The vendor's knowledge, experience, established working relationships, integrated access into EPA's IT infrastructure, and proven success make them the only capable source to meet the service requirements at the current levels during the 6-month extension period. Additionally, EPA will avoid an unnecessary duplication of contract placement efforts and costly start-up costs associated with bringing on a new vendor to include onboarding, training, and operational costs, which are significant in terms of financial and administrative resources. The current vendor, Access, is familiar with the scope, they have the operable systems required to meet the Agency's on-demand need without disrupting the currently level of quality and services.

The Agency will ensure compliance with applicable Agency policies, federal laws and regulations, maintain high-quality service delivery for users of these services, and safeguard against any potential disruption while the competitive procurement process is completed. The current task order GS-10F-0372X / 68HERC22F0512 has been evaluated thus the price associated with the extension period for this task order is hereby determined fair and reasonable as was the contract by GSA at the time of contract award.

The ceiling increase will be a continuance of the same scope of work currently provided under the existing Task Order, 68HERC22F0512, at the same pricing offered under Access's GSA Schedule Contract, GS-10F-0372. The task order is currently valued at [REDACTED]. The six month extension will increase the value of the task order by [REDACTED] to [REDACTED]. *Please refer to the attached quote for the itemized costs associated with the 6-month extension period.*

6. Description of the market research conducted:

The Agency is in the midst of a competitive follow-on acquisition for these services. Consistent with FAR 8.404(d), this order was originally competitively awarded on October 1, 2022, with a period of performance that consisted of a 12-month base period, one 12-month option period, and a 6-month option period to extend the services pursuant to FAR 52.217-8. The current period of performance is set to expire March 31, 2025. The extension must be awarded prior to that date to avoid a lapse in service and afford the Agency the time necessary to reassess the follow-on requirement to ensure compliance with recent mandates. A sources sought notice was posted via FedConnect under 68HERC24Q0063 on 2/5/2024. This RFI sought capability statements and answers to questions regarding standard industry practices. This early market research gauged interest and assisted with requirement refinement, in accordance with current and standard industry practices. In the interim, August to September 2024, an extension to the current contract GS-10F-0372X / 68HERC22F0512 was prepared and established. This extension provided for a six month extension from September 31st, 2024 to March 31st, 2025; allowing for sufficient time to complete market research to finalize the pre-award package for processing. A revised/follow-up RFI was posted to GSA and the open market on 09/30/2024. Between the two postings, a total of 36 vendor responses were captured.

7. Any other facts supporting the justification:

All facts and circumstances have been presented; therefore, there are no additional facts.

8. Actions, if any, the agency may take to remove or overcome any barriers:

In accordance with FAR 8.405-6(a)(2)(ii), within 14 days after issuing the modification to increase the capacity of the task order, a notice of this Limited Sources Justification will be published in accordance with FAR 5.301 and the justification will be posted at the Government Point of Entry (GPE) (<https://sam.gov>) and on FedConnect (<https://www.fedconnect.net>), which will provide access to the justification by linking to the GPE, for a minimum of 30 days. Any responses received to the LSJ notice will be recorded and retained as a listing of interested and/or prospective sources to be included in EPA's market research for the future recompetes, which will be conducted as a competitive acquisition.

9. The ordering activity contracting officer's certification that the justification is accurate and complete to the best of the contracting officer's knowledge and belief:

[Redacted Signature]

[Redacted Signature]

Section Manager/Contracting Officer
CAD/FSSB/Consolidated Mission Support

10. Evidence that any supporting data that is the responsibility of technical or requirements personnel (e.g., verifying the Government's minimum needs or requirements or other rationale for limited sources) and which form a basis for the justification have been certified as complete and accurate by the technical or requirements personnel:

The undersigned hereby certify that all supporting data that is the responsibility of technical or requirements personnel (e.g. verifying the Government's minimum needs or requirements or other rationale for limited sources) and which form a basis for this justification is complete and accurate.

[Redacted Signature]

[Redacted Signature]

Contracting Officer Representative (COR)
OMS

11. Determination by the approving official identifying the circumstance that applies:

This award is approved based on the authority found at FAR 8.405-6(a)(1)(i)(B) "only one source is capable of providing the supplies or services required at the level of quality required because the supplies or services are unique or highly specialized.")

Approval from the Agency's Advocate for Competition

I certify that this justification is accurate and complete to the best of my knowledge and belief

[Redacted Signature]

EPA's Advocate for Competition

[Redacted Signature]